

1 ENGROSSED SENATE
2 BILL NO. 1572

By: Rosino, Gillespie, and
Prieto of the Senate

3 and

4 Stinson and Pae of the
5 House

6
7 An Act relating to the State Commissioner of Health;
8 directing the Commissioner to conduct certain
9 feasibility study in collaboration with the
10 Department of Mental Health and Substance Abuse
11 Services; describing feasibility study; directing the
12 study to evaluate certain topics; requiring
13 compilation and submission of certain final report;
14 amending 51 O.S. 2021, Section 6, as amended by
15 Section 1, Chapter 303, O.S.L. 2025 (51 O.S. Supp.
16 2025, Section 6), which relates to officers; creating
17 certain exemption; providing for codification; and
18 declaring an emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1-103b of Title 63, unless there
22 is created a duplication in numbering, reads as follows:

23 A. For the purpose of ensuring continuity of services, the
24 State Commissioner of Health shall, in collaboration with the
25 Department of Mental Health and Substance Abuse Services, conduct a
26 feasibility study to gather and analyze information and
27 considerations related to a potential consolidation of the State
28 Department of Health and the Department of Mental Health and

1 Substance Abuse Services. The feasibility study shall examine ways
2 the state can improve efficiency, simplify operations, reduce
3 administrative costs, demonstrate outcomes, and provide quality
4 services for the residents of this state.

5 B. The feasibility study shall compare the State Department of
6 Health and the Department of Mental Health and Substance Abuse
7 Services, including a comparison of the areas listed in this
8 subsection, and shall study health agency consolidation initiatives
9 of other states. The feasibility study shall evaluate the following
10 topics:

11 1. Administrative functions of each agency including, but not
12 limited to, inventory, organizational structure and capabilities,
13 management, staffing plans, and operations;

14 2. Finances of each agency, including:

- 15 a. any estimated projected savings to the state through a
- 16 consolidation initiative,
- 17 b. reliance on federal, state, and other funding sources,
- 18 c. cost drivers, and
- 19 d. return on investment of programs and services; and

20 3. Programs offered by each agency, services provided,
21 populations served, and costs and outcomes related to programs and
22 services. The study shall evaluate:

- 23 a. programs, functions, and services that are
- 24 duplicative, complementary, or unique to each agency

1 and identify opportunities to align programs and
2 services, and

3 b. access to and quality of programs and services and
4 identify any gaps in services.

5 C. The findings of the feasibility study and any
6 recommendations of the Commissioner shall be compiled into a final
7 report, which shall be electronically submitted to the Governor, the
8 President Pro Tempore of the Senate, and the Speaker of the House of
9 Representatives not later than March 1, 2027.

10 SECTION 2. AMENDATORY 51 O.S. 2021, Section 6, as
11 amended by Section 1, Chapter 303, O.S.L. 2025 (51 O.S. Supp. 2025,
12 Section 6), is amended to read as follows:

13 Section 6. A. Except as may be otherwise provided, no person
14 holding an office under the laws of the state and no deputy of any
15 officer so holding any office shall, during the person's term of
16 office, hold any other office or be the deputy of any officer
17 holding any office, under the laws of the state. The provisions of
18 this section shall not apply to:

- 19 1. Notaries public;
20 2. Members of the State Textbook Committee;
21 3. County free fair board members;
22 4. Municipal and county law enforcement officers serving in
23 positions as law enforcement officers of both such governmental
24 entities upon such terms and conditions as are mutually approved by

1 resolutions adopted by the board of county commissioners and
2 governing body of the municipality employing such officers;

3 5. Any person holding a county or municipal office or position,
4 or membership on any public trust authority, who is a member of a
5 board or commission that relates to federal, state, county or
6 municipal government and is created by the United States government,
7 this state or a political subdivision of this state, except where
8 the duties of the offices or positions conflict;

9 6. Any elected municipal officers and school board members who
10 are appointed to a state board, commission, or similar entity if
11 there is no compensation for such services other than reimbursement
12 for necessary travel expenses pursuant to the provisions of the
13 State Travel Reimbursement Act;

14 7. Any trustee of a public trust, who is appointed as a trustee
15 of a different public trust or any trustee of the Tulsa County
16 Public Facilities Authority who may also be employed by the
17 Department of Transportation;

18 8. Law enforcement officers employed by municipal or county law
19 enforcement departments or agencies, other than those law
20 enforcement officers elected or appointed as sheriff, chief of
21 police or some similar position in which they are the head of a
22 county or municipal law enforcement agency, who are elected to local
23 boards of education; provided, the provisions of this paragraph
24 shall not prohibit any law enforcement officer employed by a

1 municipality having a population of ten thousand (10,000) or fewer
2 people from serving as a member of a local board of education;

3 9. Any member of the Oklahoma Highway Patrol Division of the
4 Department of Public Safety who is elected to a local board of
5 education;

6 10. Any employee of the Oklahoma State Bureau of Investigation
7 who is elected to a local board of education;

8 11. Any District Supervisor, Assistant District Supervisor,
9 Team Supervisor, Parole Officer 1 or Parole Officer 2 of the
10 Department of Corrections who is elected or appointed to a city
11 council;

12 12. Any trustee or director of a rural electric cooperative, or
13 port authority who is appointed or elected to a state, county or
14 municipal board, commission or similar entity;

15 13. County employees who are elected as members of town or city
16 councils;

17 14. Municipal, county, state or tribal law enforcement or peace
18 officers operating under cross-deputization agreements with an
19 Indian tribe or branch of the federal government;

20 15. Municipal or county law enforcement or peace officers
21 serving in positions as campus police officers or campus public
22 safety officers pursuant to the provisions of the Oklahoma Campus
23 Security Act, upon such terms and conditions as are mutually
24 approved by resolution adopted by the governing body of the

1 municipality or county and the governing board of the institution of
2 higher education;

3 16. State law enforcement or peace officers serving in
4 positions as campus police officers or campus public safety officers
5 pursuant to the provisions of the Oklahoma Campus Security Act, upon
6 such terms and conditions as are mutually approved by written
7 agreement between the Commissioner of Public Safety and the
8 governing board of the institution of higher education;

9 17. Municipal, county and state law enforcement officers
10 serving in positions as part-time or seasonal rangers or peace
11 officers under the Oklahoma Tourism and Recreation Department or the
12 Grand River Dam Authority;

13 18. Members of the University Hospitals Authority;

14 19. Any person holding a state or county office or position who
15 is a reserve force deputy sheriff, or a reserve special agent with
16 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control
17 or a reserve municipal police officer;

18 20. Any person holding a state office or position who serves as
19 a special assistant district attorney without compensation;

20 21. Any elected or appointed member of a local school board who
21 is a member of a municipal planning commission;

22 22. Any elected or appointed member of a local school board who
23 is a member or an officer of a volunteer fire department;

24

1 23. Directors or officers of a rural water district and chiefs
2 of municipal fire departments or rural fire districts who are
3 appointed or elected to an unsalaried office in a state, county,
4 municipal, school, or technology center school board, commission, or
5 similar entity, except where the duties of the office would create a
6 conflict of interest;

7 24. Any person who is a dispatcher or confinement officer at a
8 municipal or county jail who is a noncompensated reserve municipal
9 police officer or a reserve deputy sheriff;

10 25. Any person who is an assistant district attorney serving as
11 a municipal judge or prosecutor;

12 26. Any park ranger under the Oklahoma Tourism and Recreation
13 Department or any game warden or reserve game warden employed by the
14 Department of Wildlife Conservation who is elected or appointed to a
15 local board of education or to a municipal governing body, board,
16 commission or similar entity;

17 27. Members of the Oklahoma State University Medical Authority,
18 the Oklahoma State University Medical Trust or the State Board of
19 Osteopathic Examiners;

20 28. Any member of the state Legislature or any state officer
21 who serves on the board of trustees of the Oklahoma School for the
22 Visual and Performing Arts;

23 29. Members of the Council on Judicial Complaints;

24

1 30. A campus police officer who is elected as a member of the
2 governing board of a town or municipality that is outside of the
3 town or municipality where the person serves as a campus police
4 officer; ~~and~~

5 31. Any person who is a state employee but not a member of the
6 state military forces, including district attorneys, assistant
7 district attorneys, district court judges, associate district court
8 judges and special judges, when detailed as a military trial judge
9 pursuant to Section 826 of Title 44 of the Oklahoma Statutes or when
10 serving as an appellate military judge pursuant to Section 866 of
11 Title 44 of the Oklahoma Statutes when the Military Court of Appeals
12 is convened. The rules of procedure prescribed by the State Judge
13 Advocate pursuant to subsection L of Section 866 of Title 44 of the
14 Oklahoma Statutes shall define what constitutes the Military Court
15 of Appeals being "convened" for purposes of this paragraph; and

16 32. The State Commissioner of Health, if he or she is appointed
17 as Commissioner of Mental Health and Substance Abuse Services,
18 including on an acting or interim basis, for the limited purpose of
19 conducting the feasibility study described in Section 1 of this act.
20 The provisions of this paragraph shall cease to have effect upon
21 submission of the feasibility study as described in Section 1 of
22 this act.

23 The provisions of this section shall not prohibit any person
24 holding an office under the laws of the state or any deputy of any

1 officer so holding any office from serving upon the board of
2 Oklahoma Futures or upon the board of directors of the Oklahoma
3 Center for the Advancement of Science and Technology. The
4 provisions of this section shall not prohibit a member of the board
5 of directors of the Oklahoma Center for the Advancement of Science
6 and Technology from serving upon the board of Oklahoma Futures.

7 B. Except as provided in subsection C of this section,
8 salaries, emoluments or benefits that would otherwise be paid by the
9 agency or political subdivision to a loaned employee or officer
10 shall instead be paid to the regular employer of such employee. The
11 loaned employee shall in turn be paid regular salary and benefits
12 the same as if continuing regular employment with the permanent
13 employer.

14 C. Any person excepted pursuant to paragraph 31 of subsection A
15 of this section, when retained as a military trial judge or when
16 serving as a military appellate judge when the Military Court of
17 Appeals is convened, shall be entitled to military judicial leave in
18 accordance with Section 209 of Title 44 of the Oklahoma Statutes.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

1 Passed the Senate the 25th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives